



U.S. Department  
of Transportation

**Pipeline and Hazardous  
Materials Safety  
Administration**

**September 27, 2021**

1200 New Jersey Avenue, SE  
Washington, DC 20590

DOT-SP 21198

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
  - a. This special permit authorizes the transportation in commerce of lithium ion batteries exceeding 35 kg by cargo-only aircraft. This special permit provides no relief from the Hazardous Materials Regulations (HMR) or the International Civil Aviation Organization's Technical Instructions for the Safe Transport of Dangerous Goods by Air (ICAO TI) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
  - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
  - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
  - d. This special permit serves as an approval under Special Provision A99 of the ICAO TI and as a "Competent Authority Approval" as defined under 49 CFR § 107.1.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180 and the ICAO TI.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.101(j) in that packagings may exceed 35 kg net weight when transported via cargo-only aircraft.
5. BASIS: This special permit is based on the application of Porsche Cars North America, Inc. dated February 24, 2021 submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

| Hazardous Materials Description                               |                           |                       |               |
|---------------------------------------------------------------|---------------------------|-----------------------|---------------|
| Proper Shipping Name                                          | Hazard Class/<br>Division | Identification Number | Packing Group |
| Lithium ion batteries including lithium ion polymer batteries | 9                         | UN3480                | N/A           |

7. SAFETY CONTROL MEASURES:a. PACKAGING:

(1) Each battery assembly must be packaged in a non-metallic inside packaging that completely encloses the battery assembly within a UN 4D plywood box that meets the criteria for Packing Group II packagings in accordance with Packing Instruction 965 of the ICAO TI and § 173.185.

(2) The gross weight of a package may not exceed 171 kg.

b. OPERATIONAL CONTROLS:

(1) Battery modules are made of up to thirteen 3.7V (37 Ah) cells (Model: Samsung SDI Co. Ltd. CM0370R0012A) with a maximum Wh rating of 1779.7 per module and battery assemblies are made of up to 8 battery modules per assembly as specified in the application dated February 24, 2021 and on file with the Office of Hazardous Materials Safety Approvals and Permits Division.

(2) A maximum nominal energy rating of the battery assembly may not exceed 9,400 Wh.

(3) All lithium ion battery modules and assemblies must be protected against external short circuits;

(4) The state of charge for lithium ion battery assemblies must not exceed 30% when offered for transportation aboard cargo-only aircraft.

c. Testing Requirements:

(1) All lithium ion cells and modules for the authorized cells and modules must be of a type that have passed all required tests as specified in the "UN Manual of Tests and Criteria, 5<sup>th</sup> Edition".

(2) Battery assemblies (each of which must have a Wh rating exceeding 6,200 Wh) need not be tested in accordance with the “UN Manual of Tests and Criteria, 5th Revised Edition” if the assembly is equipped with a system capable of monitoring the battery assembly and preventing short circuits, or over discharge between the batteries in the assembly and any overheat or overcharge of the battery assembly.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR, and the ICAO TI.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. This special permit in no way affects the need to obtain any required authorizations from other agencies of the United States Government or from the competent authorities of countries of origin, transit, and destination and State of the Operator.

d. The special permit holder must maintain a record of all activity conducted under the authority granted in this special permit. The record must contain a complete listing and number of shipments made to include and upon request make this information available to a DOT representative or an enforcement official. The record must contain a listing and number of shipments made to include:

(1) Dates of shipment; and

(2) Description of each type of shipment.

9. MODES OF TRANSPORTATION AUTHORIZED: Cargo-only aircraft.

10. MODAL REQUIREMENTS: A current copy of this special permit must be maintained at the operational locations where this special permit is intended to be used. The grantee must furnish a copy of this special permit to the air carrier before, or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover  
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: MK/